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BACKGROUND GUIDE

AIPPM

Agenda : Deliberation on Electoral Reforms in India with special emphasis on Electoral Transparency, EVM–VVPAT Credibility, Regulation of Paid News, Internal Party Democracy, and the implications of the Special Intensive Revision (SIR) of Electoral Rolls.



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Letter from the Moderator

Distinguished Delegates,

It is my privilege to welcome you to the All India Political Parties Meet, a committee that asks you to step into the shoes of India's political formations and confront one of the most consequential questions before our constitutional democracy today: how does a nation of near-universal franchise keep its elections free, fair, transparent, and credible while its technology, its media, and its social fabric evolve at unprecedented speed.

Free and fair elections are not a procedural formality. They are the mechanism through which the sovereign will of the People, recognised in the Preamble to the Constitution, is translated into legitimate government. The Supreme Court has repeatedly held that the conduct of free and fair elections is part of the basic structure of the Constitution. Yet every general election in India surfaces the same anxieties: is campaign finance transparent, are Electronic Voting Machines and the Voter Verifiable Paper Audit Trail beyond reasonable doubt, is the news that citizens consume during campaigns genuinely independent journalism or paid promotion, do political parties practise internally the democracy they promise externally, and do processes meant to purify electoral rolls, such as the ongoing Special Intensive Revision, protect every eligible citizen's right to vote while removing only those genuinely ineligible.

This committee does not expect you to defend a single ideological position. It expects constitutional morality, evidence-based argument, and the spirit of consensus-building that has historically characterised all-party meets convened by the Election Commission of India and the Government of India on matters of electoral integrity. I look forward to robust, respectful, and rigorously researched debate.

Warm regards,

Thakur Mehak Singh
Moderator, All India Political Parties Meet



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COMMITTEE MANDATE

The All India Political Parties Meet (AIPPM) is a consultative, multi-party forum in the tradition of meetings periodically convened by the Election Commission of India and the Government of India, bringing together representatives of national and State political parties to deliberate on electoral reform. Unlike a statutory or judicial body, the AIPPM does not itself enact law; its output is persuasive consensus that feeds into legislative drafting, Election Commission rule-making, and constitutional amendment processes.

Nature of the Forum

The AIPPM operates on the premise that because political parties are simultaneously the beneficiaries and the regulated subjects of electoral law, durable reform is only possible when parties themselves negotiate its terms. Historically, such meets have addressed simultaneous elections, use of official machinery during campaigns, paid news, and criminalisation of politics.

Role of Political Parties

- Political parties act as the principal architects of electoral competition, candidate selection, and campaign conduct, and are therefore central stakeholders in any reform of transparency norms.
- Recognised national and State parties participate through their nominated representatives, who must balance party interest with the constitutional goal of free and fair elections.
- Parties are expected to engage with the Election Commission's Model Code of Conduct, disclosure obligations under the Representation of the People Act, 1951, and, going forward, any legislative framework on internal party democracy.

Consensus-Building and the Legislative Process

Reforms discussed in this committee may ultimately require: (a) ordinary legislation amending the Representation of the People Acts of 1950 and 1951; (b) constitutional amendment, where changes touch Articles 324 to 329, as with the Constitution (One Hundred and Twenty-Ninth Amendment) Bill, 2024, on simultaneous elections; (c) Election Commission rule-making under the Conduct of Election Rules, 1961; or (d) administrative circulars and Standard Operating Procedures issued by the Commission. Delegates should frame their resolutions with an awareness of which of these instruments is appropriate for the reform they propose.



Historical Evolution of Elections in India

India's electoral architecture was shaped in the Constituent Assembly between 1946 and 1949, where members such as Dr. B.R. Ambedkar and others debated the case for a single, independent, all-India Election Commission insulated from executive control, ultimately reflected in Article 324. The first General Election of 1951 to 1952, conducted under Sukumar Sen as the first Chief Election Commissioner, enfranchised an electorate of roughly 173 million, the vast majority first-time voters in a country with widespread illiteracy, and is widely regarded as a foundational demonstration of universal adult suffrage functioning at scale.

- **1950 to 1951** : Enactment of the Representation of the People Act, 1950 (preparation of electoral rolls, allocation of seats) and the Representation of the People Act, 1951 (conduct of elections, disqualifications, election disputes, corrupt practices).
- **1985** : The Anti-Defection Law, inserted as the Tenth Schedule through the Fifty-Second Constitutional Amendment, sought to curb floor-crossing by legislators, though its Speaker-adjudication model remains contested.
- **1990 to 1996** : T.N. Seshan's tenure as Chief Election Commissioner is widely credited with assertive enforcement of the Model Code of Conduct, curbing booth capturing and impersonation, and establishing the Commission's institutional independence in practice.
- **1998 to 2004** : Phased introduction of Electronic Voting Machines, first used on a limited scale in 1998 and deployed nationwide in the 2004 General Election.
- **2013** : Introduction of the Voter Verifiable Paper Audit Trail (VVPAT), following Supreme Court direction in *Dr. Subramanian Swamy v. Election Commission of India*, first used in a bye-election in Nagaland and progressively scaled up to full national deployment by the 2019 General Election.
- **2018 and 2024** : Introduction, and subsequent invalidation, of the Electoral Bonds Scheme as a mode of anonymous political donation (discussed in detail below).
- **2025 to 2026** : Nationwide roll-out of the Special Intensive Revision (SIR) of electoral rolls, beginning with Bihar ahead of its 2025 Assembly election and extended in a second phase to twelve States and Union Territories, together with continuing Joint Parliamentary Committee deliberations on the Constitution (One Hundred and Twenty-Ninth Amendment) Bill, 2024, for simultaneous elections.



Constitutional Framework

Part XV of the Constitution (Articles 324 to 329) constitutes the primary constitutional architecture governing elections in India.

Key Constitutional Provisions

- **Article 324** : Vests superintendence, direction, and control of elections to Parliament, State Legislatures, and the offices of President and Vice-President in the Election Commission of India.
- **Article 325** : Prohibits exclusion from, or special treatment in, electoral rolls on grounds only of religion, race, caste, or sex; establishes the principle of one general electoral roll for every territorial constituency.
- **Article 326** : Establishes adult suffrage as the basis of election to the House of the People and State Legislative Assemblies.
- **Article 327** : Empowers Parliament to make provision, by law, for all matters relating to elections to the Houses of Parliament and State Legislatures.
- **Article 328** : Empowers State Legislatures to make provision for elections to the State Legislature, subject to Parliament's paramount power under Article 327.
- **Article 329** : Bars interference by courts in electoral matters except through an election petition, and protects laws relating to delimitation from judicial challenge on certain grounds.

Statutory Framework

- **Representation of the People Act, 1950** : Governs allocation of seats, delimitation, qualification of electors, and preparation of electoral rolls, including the statutory basis (Section 21) invoked by the Election Commission for special and intensive revisions.
- **Representation of the People Act, 1951** : Governs conduct of elections, election machinery, corrupt practices and electoral offences, disqualification of candidates (Section 8, including on conviction), and adjudication of election disputes through election petitions.
- **Election Symbols (Reservation and Allotment) Order, 1968** : Governs recognition of political parties and allotment of election symbols, including disputes over symbol allocation between factions of a party.
- **Conduct of Election Rules, 1961** : Prescribes detailed procedure for polling, counting, use of EVMs and VVPATs, and related administrative safeguards.
- **Income Tax Act, 1961 and Companies Act, 2013 (as amended)** : Govern tax treatment of political donations and corporate contribution limits, both significantly affected by the Supreme Court's 2024 judgment on electoral bonds.



Electoral Transparency

Electoral transparency spans several interlocking concerns: the sources and scale of campaign finance, the disclosure obligations placed on candidates and parties, the criminal and financial antecedents of candidates, and the Election Commission's own monitoring architecture during the campaign period.

Campaign Finance and Political Funding

Candidates are subject to expenditure ceilings prescribed under the Conduct of Election Rules, 1961, and must file statements of election expenditure with the Election Commission within the stipulated period after results are declared, failure to do so attracting disqualification under Section 10A of the Representation of the People Act, 1951. Political parties, by contrast, face no overall expenditure ceiling, a long-standing asymmetry flagged by successive Law Commission and Election Commission reports. Contributions above a threshold require disclosure in contribution reports filed with the Commission, though cash donations below the threshold, permitted historically up to a limited sum per donor, have been criticised as a continuing channel for opacity.

Disclosure Norms and Candidate Affidavits

Following the Supreme Court's judgments in *Union of India v. Association for Democratic Reforms* (2002) and *People's Union for Civil Liberties v. Union of India* (2003), candidates are required to file affidavits disclosing criminal antecedents, assets and liabilities, and educational qualifications, later reinforced through the Representation of the People (Amendment) Ordinance, 2002 and Rules. The Election Commission publishes these affidavits, and organisations such as the Association for Democratic Reforms compile and analyse them at each election cycle.

Criminalisation of Politics

Successive analyses of candidate affidavits by the Election Commission and civil society bodies have documented a persistent and, in several recent Lok Sabha and Assembly elections, rising proportion of winning candidates facing pending criminal cases, including serious charges. In *Public Interest Foundation v. Union of India* (2018), the Supreme Court declined to disqualify such candidates outright, holding this a matter for Parliament, but directed enhanced disclosure, including publication of criminal antecedents in newspapers and on party websites, later reinforced in *Rambabu Singh Thakur v. Sunil Arora* (2020), which additionally required parties to publish reasons for selecting candidates with pending criminal cases.



The Model Code of Conduct

The Model Code of Conduct, evolved through consensus among political parties since the 1960s and administered by the Election Commission from the announcement of elections until the process concludes, regulates conduct of the ruling party and government machinery, campaign speech, and use of official resources. It remains a non-statutory but Commission-enforced instrument, and repeated proposals to grant it explicit statutory backing have been debated without legislative action to date



EVM-VVPAT CREDIBILITY

History and Technical Architecture

Electronic Voting Machines were piloted from 1982 and used on a limited scale through the 1990s before nationwide deployment by 2004. Each EVM comprises a Ballot Unit, a Control Unit, and, since their phased introduction from 2013 following the Supreme Court's direction in *Dr. Subramanian Swamy v. Election Commission of India*, a Voter Verifiable Paper Audit Trail unit that prints a paper slip visible to the voter for a few seconds before it is deposited in a sealed drop box. The machines are stand-alone, battery-operated devices with one-time-programmable microcontrollers manufactured by Bharat Electronics Limited and Electronics Corporation of India Limited; they are not networked to the internet, a design feature the Election Commission cites as a core security safeguard.

Administrative Safeguards

- **Randomisation:** EVMs are allotted to constituencies and polling stations through two stages of computerised randomisation in the presence of candidates or their representatives.
- **First Level Checking (FLC):** Machines undergo technical checking by engineers of the manufacturers in the presence of political party representatives before every election.
- **Mock polls:** Conducted before actual polling in the presence of polling agents to verify correct functioning.
- **Sealing and storage:** Machines are sealed after polling and stored under multi-layered security, including CCTV surveillance and armed guard, in strong rooms accessible only in the presence of candidates or their agents.
- **VVPAT slip verification:** Slips from a randomly selected sample of polling stations per Assembly segment are counted and matched against the electronic count.

Dr. Subramanian Swamy v. Election Commission of India (2013) (2013) 10 SCC 500

The Supreme Court held that the paper trail is an indispensable requirement of free and fair elections and directed the phased introduction of VVPAT with all EVMs, giving constitutional impetus to the system now in nationwide use.



Association for Democratic Reforms v. Election Commission of India (2024) Judgment dated 26 April 2024

A two-judge Bench declined to direct 100% cross-verification of EVM counts against VVPAT slips or reversion to paper ballots, holding the existing 5% random verification protocol adequate given the absence of any documented instance of EVM-VVPAT mismatch, while directing that Symbol Loading Units be sealed for 45 days post-result and permitting candidates placed second or third to request microcontroller verification of a sample of machines at their own cost, refundable if tampering is found. Subsequent petitions raising the same issue have been dismissed by the Supreme Court as concluded by this judgment, including in 2025.

Arguments and Continuing Concerns

- Supporters emphasise that EVMs eliminate several traditional forms of malpractice associated with paper ballots, such as booth capturing and ballot stuffing, and point to the absence of any judicially established instance of tampering across successive elections.
- Critics, including some opposition parties and civil society organisations, continue to press for full VVPAT-EVM matching, citing voter confidence rather than any proven technical flaw, and have periodically raised concerns about the pace of counting and machine reliability in specific constituencies.
- The Election Commission has resisted disclosure of EVM source code, citing the risk that public disclosure itself could be exploited to fabricate look-alike malicious code, a position the Supreme Court has accepted.
- Comparative practice varies: several established democracies, including Germany, the Netherlands, and Ireland, have moved away from electronic voting machines on procedural-transparency grounds, while others, including Brazil and the United States in parts, continue to use electronic systems with varying audit mechanisms.



Paid News

Paid news refers to the publication or broadcast of content favourable to a candidate or party in exchange for consideration, presented to the audience as independent editorial or news content rather than as a paid advertisement, thereby violating both electoral disclosure requirements and the ordinary reader's or viewer's right to know that they are consuming sponsored material.

Regulatory History

Concerns escalated following its documented role in the 2009 General Election, prompting the Press Council of India's 2010 sub-committee report and Parliamentary Standing Committee examination. The Election Commission subsequently constituted district and State-level Media Certification and Monitoring Committees (MCMC) to screen political advertisements and flag suspected paid news, and empowered Returning Officers to treat established instances of paid news as an election expenditure of the beneficiary candidate, and, in cases of concealment, as a corrupt practice attracting disqualification proceedings under the Representation of the People Act, 1951.

Digital Political Advertising and Emerging Challenges

- Pre-certification requirement for political advertisements on television, radio, and, since 2019, on social media and digital platforms, administered through the MCMC framework and voluntary codes of conduct signed by major social media intermediaries with the Election Commission.
- Influencer-driven and paid social media campaigning increasingly blurs the line between organic political opinion and sponsored promotion, an area the Commission has acknowledged as under-regulated relative to traditional print and broadcast media.
- Synthetic and AI-generated content, including deepfakes and voice clones deployed in campaign material, has emerged as a distinct and more recent challenge, prompting Election Commission advisories to political parties on responsible use of artificial intelligence in campaigning.
- The absence of a dedicated statutory definition of paid news in the Representation of the People Act, 1951, leaves the Commission to proceed primarily through the Model Code of Conduct and the corrupt practices framework under Section 123, an approach that Parliamentary Standing Committees have repeatedly suggested be placed on a firmer statutory footing.

Internal Party Democracy

Political parties in India are registered with the Election Commission under Section 29A of the Representation of the People Act, 1951, and are required, as a condition of registration, to include a provision in their constitutions for periodic internal elections to their principal organs. In practice, enforcement of this requirement has been uneven, and the Commission's power is largely confined to seeking compliance reports rather than deregistering non-compliant parties, a gap repeatedly noted in Law Commission and Election Commission reform proposals.

- Candidate selection processes within most major parties remain centralised in the party high command or a small leadership core, with limited transparent primaries or membership balloting comparable to some presidential systems abroad.
- Dynastic succession within party leadership and candidate lists continues to be a subject of political and academic debate, cutting across party lines, though the extent and normative significance of the phenomenon remain contested.
- Women's representation: The Constitution (One Hundred and Sixth Amendment) Act, 2023 (the Nari Shakti Vandan Adhiniyam) reserves one-third of seats in the Lok Sabha and State Legislative Assemblies for women, with implementation contingent on the delimitation exercise following the first Census after the amendment's commencement, keeping its practical effective date a live policy question.
- Youth participation and internal party structures for youth wings, student wings, and first-time candidates remain uneven across parties, with some maintaining dedicated youth membership and leadership pipelines.
- Party finance disclosure: Parties are required to submit annual audited accounts and contribution reports to the Election Commission, and to the Income Tax Department for exemption purposes, though enforcement of consequences for late or incomplete filing has been criticised as weak.

Comparative and Law Commission Perspectives

The Law Commission's 170th Report on Reform of the Electoral Laws (1999) recommended statutory regulation of the internal functioning of political parties, including mandatory internal elections and maintenance of proper accounts, recommendations echoed in subsequent Election Commission proposals for electoral reform but not yet enacted into binding legislation. Comparative models, such as Germany's Political Parties Act, which mandates detailed internal democratic procedures and public funding tied to transparency, are frequently cited in this debate as an illustrative, though not directly transplantable, benchmark

Special Intensive Revision (SIR) of Electoral Rolls

The Special Intensive Revision is a house-to-house enumeration exercise undertaken by the Election Commission of India to rebuild and purify electoral rolls, distinguishing itself from the routine Summary Revision conducted annually. The Commission's stated objective is to remove entries of deceased, permanently shifted, and duplicate electors, and to exclude persons not entitled to be registered as citizens under the Representation of the People Act, 1950, while simultaneously enabling addition of eligible electors not currently on the rolls, on the ground that no such intensive, house-to-house revision had been undertaken since 2002 to 2004.

Legal Basis and Process

- **Statutory basis:** Section 21(3) of the Representation of the People Act, 1950, read with the Election Commission's plenary superintendence power under Article 324 of the Constitution.
- **Process:** Enumerators are deployed for house-to-house verification; electors already on an existing qualifying roll are issued pre-filled enumeration forms, while others must file fresh forms with supporting documents; a Draft Roll is published, followed by a claims-and-objections window, verification and hearing by Electoral Registration Officers, and publication of the Final Roll.
- **Phasing:** The exercise began in Bihar ahead of the 2025 Assembly election, and a second phase was extended to twelve additional States and Union Territories, with enumeration, draft publication, claims and objections, and final roll publication proceeding through late 2025 and into 2026 on a State-wise schedule set by the Commission.
- **Appellate mechanism:** Persons excluded from the draft or final rolls may appeal to Appellate Tribunals constituted for this purpose; as of mid-2026, a very large volume of such appeals, running into several lakh, remains pending before Tribunals in at least one major State, prompting judicial scrutiny of tribunal capacity and functioning.



Judicial Developments

Association for Democratic Reforms and Ors. v. Union of India and Ors. (SIR matter) Judgment dated 27 May 2026

A Bench led by the Chief Justice of India upheld the constitutional and statutory authority of the Election Commission to conduct the Special Intensive Revision, holding that the accuracy and credibility of electoral rolls are foundational to free and fair elections and fall squarely within the Commission's superintendence power under Article 324 read with Section 21(3) of the Representation of the People Act, 1950. The Court simultaneously underscored the importance of procedural safeguards, adequate notice, and inclusivity in implementation, directing continued judicial oversight of specific administrative concerns raised during the hearings, including document requirements and appellate capacity.

Following the principal judgment, the Supreme Court has continued to monitor implementation through subsequent hearings, including directions that the SIR process in West Bengal continue without interruption while procedural timelines for document scrutiny were adjusted, and oral observations, as recently as July 2026, clarifying that deletion of a name from the electoral roll during SIR does not by itself amount to a determination of loss of citizenship, since the Election Commission is not a citizenship-determining authority.

Distinguishing the Positions

Perspectives on SIR (Neutral Summary)

- Election Commission position: The exercise is a lawful, necessary, and time-bound purification of rolls last intensively revised over two decades ago, undertaken with procedural safeguards including draft publication, claims and objections, and appellate remedy.
- Judicial position: The Supreme Court has upheld the Commission's authority while directing attention to procedural fairness, adequate notice, and functioning of appellate tribunals, and has clarified that roll exclusion is not equivalent to a citizenship determination.
- Political and civil society concerns: Critics, including opposition parties and organisations such as The Reporters' Collective and academic commentators, have raised concerns about large-scale exclusions, the adequacy of documentation demanded of poorer and migrant electors, discontinuation of de-duplication software in favour of translation tools, and the practical burden on Electoral Registration Officers and enumerators within compressed timelines.
- Administrative concerns: A substantial backlog of appeals before Appellate Tribunals in at least one major State has raised questions about the adequacy of tribunal capacity relative to the scale of exclusions generated by the exercise.



Important Supreme Court Judgments

Indira Nehru Gandhi v. Raj Narain (1975) AIR 1975 SC 2299

Struck down a constitutional amendment seeking to place the Prime Minister's election beyond judicial scrutiny, holding free and fair elections to be part of the basic structure of the Constitution.

Union of India v. Association for Democratic Reforms (2002) (2002) 5 SCC 294

Held that voters have a fundamental right under Article 19(1)(a) to know the antecedents of candidates, including criminal record, assets, and education, directing the Election Commission to secure such disclosure through candidate affidavits.

People's Union for Civil Liberties v. Union of India (2003) (2003) 4 SCC 399

Upheld the right to disclosure of candidate information and struck down a legislative attempt to dilute the ADR judgment, reaffirming the constitutional status of the voter's right to information.

Lily Thomas v. Union of India (2013) (2013) 7 SCC 653

Struck down Section 8(4) of the Representation of the People Act, 1951, which had allowed convicted sitting legislators to retain their seats pending appeal, holding disqualification to take immediate effect upon conviction.

Dr. Subramanian Swamy v. Election Commission of India (2013) (2013) 10 SCC 500

Directed introduction of the VVPAT system as an indispensable requirement for the verifiability of the EVM-based voting process.

Union of India v. Association for Democratic Reforms (NOTA judgment, 2013) (2013) 10 SCC 1

Directed introduction of the None of the Above (NOTA) option on EVMs and ballot papers, holding it necessary to protect voters' right of non-disclosure and freedom of expressing dissent.

Association for Democratic Reforms v. Union of India (Electoral Bonds, 2024) 2024 INSC 113

A five-judge Constitution Bench unanimously struck down the Electoral Bonds Scheme, 2018 and connected amendments to the Representation of the People Act, 1951, the Income Tax Act, 1961, and the Companies Act, 2013, holding that anonymous, unlimited corporate political donations violated the voter's right to information under Article 19(1)(a) and could not be justified as a proportionate means of curbing black money in politics; directed the State Bank of India to disclose complete bond purchase and encashment data to the Election Commission for publication.



**Association for Democratic Reforms v. Election Commission of India (VVPAT, 2024)
Judgment dated 26 April 2024**

Declined to direct 100% EVM-VVPAT cross-verification, while issuing incremental safeguards on symbol-loading-unit sealing and post-result microcontroller verification (detailed above).

SIR judgment (Association for Democratic Reforms and connected matters, 2026) Judgment dated 27 May 2026

Upheld the Election Commission's authority to conduct the Special Intensive Revision of electoral rolls, subject to continuing procedural oversight (detailed above).

**SIR judgment (Association for Democratic Reforms and connected matters, 2026)
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Upheld the Election Commission's authority to conduct the Special Intensive Revision of electoral rolls, subject to continuing procedural oversight (detailed above).

Law Commission Recommendations

Report	Key Recommendations
170th Report (1999): Reform of the Electoral Laws	State funding of elections in kind rather than cash; statutory regulation of internal party democracy and party accounts; stricter action against paid news and communal appeals; regulation of opinion and exit polls.
244th Report (2014): Electoral Disqualifications	Recommended disqualification of candidates upon framing of charges (not merely conviction) for serious offences, subject to safeguards such as filing at least one year before election and framing by a Sessions Court, to curb strategic delay in trials.
255th Report (2015): Electoral Reforms	Comprehensive proposals including a total ban on cash donations above a nominal threshold, mandatory disclosure of all donations, strengthening of the Model Code of Conduct's legal status, and reforms to the paid news framework and false declaration provisions under Section 125A of the Representation of the People Act, 1951.
Subsequent Election Commission proposals (2016 onward)	Reiterated many of the 255th Report's recommendations, including a cap on cash donations, mandatory audited accounts, and stronger MCMC oversight of paid news, most of which remain under consideration rather than enacted.



Parliamentary Committee Recommendations

- Successive Parliamentary Standing Committees on Personnel, Public Grievances, Law and Justice have examined electoral reform bills and recommended statutory backing for the Model Code of Conduct, tighter campaign finance disclosure, and stronger paid news penalties, most recommendations awaiting legislative action.
- The Joint Parliamentary Committee on the Constitution (One Hundred and Twenty-Ninth Amendment) Bill, 2024 and the Union Territories Laws (Amendment) Bill, 2024, chaired by Shri P.P. Chaudhary, has conducted extensive multi-State consultations through 2025 and 2026 on the One Nation, One Election proposal for simultaneous Lok Sabha and State Assembly elections; as of July 2026 the Committee's tenure has been repeatedly extended, with the Chairperson indicating the report is unlikely to be tabled during the Monsoon Session 2026 and that implementation, if the Bill is enacted, is targeted for the 2029 General Election.
- Standing Committee examinations of political funding have repeatedly flagged the absence of an expenditure ceiling for political parties (as distinct from individual candidates) as a significant transparency gap.
- Committees examining media regulation have recommended a statutory, rather than purely administrative, basis for the Media Certification and Monitoring Committee framework used to screen paid news and political advertising.



Current Challenges

- **Money power:** Disproportionate campaign spending, much of it outside formal disclosure, continues to raise concerns about equality of electoral opportunity between well-resourced and less-resourced candidates and parties.
- **Muscle power:** Instances of intimidation, booth-level violence, and coercion, though substantially reduced since the pre-1990s period, persist in some regions and remain a subject of Election Commission security planning.
- **Paid news and fake news:** The proliferation of digital and social media has expanded the channels through which sponsored or fabricated political content can reach voters outside traditional MCMC screening.
- **AI-generated misinformation and deepfakes:** Increasing use of synthetic audio and video in campaign material has outpaced the current regulatory and detection framework, prompting Election Commission advisories rather than binding rules to date.
- **Electoral roll accuracy, migration, and duplicate entries:** The scale of internal migration in India complicates the maintenance of accurate, updated rolls, the core justification offered for the Special Intensive Revision, while raising the competing risk of inadvertent exclusion of genuinely eligible electors.
- **Booth management and election administration:** Deployment of personnel, EVM logistics, and security across a country with over 900 million registered electors and more than a million polling stations remains a significant administrative undertaking each cycle.
- **Digital campaigning and social media regulation:** Political advertising on digital platforms remains governed by a mix of Election Commission advisories, voluntary platform codes, and the Information Technology Act framework, without a dedicated, comprehensive statutory regime.

Stakeholder Analysis

Stakeholder	Position and Interest (Neutral Summary)
Election Commission of India	Interested in protecting its constitutional independence and administrative authority while responding to criticism regarding transparency, consultation, and pace of reforms such as SIR.
Ruling party / parties	Generally supportive of measures such as SIR and simultaneous elections framed as administrative efficiency and roll accuracy; positions on campaign finance reform vary with electoral advantage considerations.
Opposition parties	Have raised concerns regarding the pace, documentation burden, and exclusionary risk of SIR, and have historically pressed for full VVPAT verification and stricter campaign finance disclosure, including post-Electoral Bonds alternatives.
Judiciary	Has consistently affirmed free and fair elections as part of the basic structure while balancing deference to the Election Commission's expertise against enforcement of procedural safeguards, as seen across the ADR, VVPAT, and SIR lines of judgments.
Media	Faces conflicting pressures between commercial sustainability, editorial independence, and Election Commission-mandated pre-certification and paid news monitoring during campaign periods.
Civil society organisations	Groups such as the Association for Democratic Reforms have driven much of the litigation and public data disclosure underlying reforms in candidate affidavits, electoral bonds, and VVPAT verification.
Citizens and voters	Bear the practical consequences of roll accuracy and exclusion risk, campaign finance opacity, and information reliability; their constitutionally recognised right to information underlies much of the jurisprudence in this area.
Technology providers	Bharat Electronics Limited and Electronics Corporation of India Limited manufacture EVMs and VVPATs under Election Commission specification, and are central to the technical credibility debate.
State Governments	Responsible for providing personnel, logistics, and law-and-order support for elections and roll revision exercises, and are directly affected by simultaneous-election proposals that touch upon federal timing of State Assembly elections.
Central Government	Sponsors constitutional amendment bills such as the 129th Amendment Bill, and engages with the Election Commission on legislative and administrative aspects of reform.

Comparative Study

Country	Election Management	Political Funding	Electronic Voting	Party Democracy
United Kingdom	Electoral Commission (independent statutory body) alongside Returning Officers	Electoral Commission (independent statutory body) alongside Returning Officers	Electoral Commission (independent statutory body) alongside Returning Officers	Electoral Commission (independent statutory body) alongside Returning Officers
United States	Decentralised, State-run elections; Federal Election Commission for federal campaign finance	Post Citizens United (2010) permits substantial independent expenditure through Political Action Committees; extensive disclosure requirements	Mixed: paper ballots, optical scan, and some electronic machines depending on State, generally with a voter-verified paper record	Primary elections (open or closed depending on State) provide a formal internal-democracy mechanism absent in India
Australia	Australian Electoral Commission, independent statutory body	Disclosure thresholds with periodic reform debate on donation caps	Paper ballots; compulsory voting	Preselection processes vary by party; some use member ballots
Canada	Elections Canada, independent statutory body	Political contribution limits with public matching for reimbursable expenses	Paper ballots	Party leadership races often decided by dues-paying member ballot
Germany	Federal Returning Officer and State-level bodies under the Bundeswahlgesetz	Mixed public and private funding; public funding tied to vote share; strict disclosure above threshold	Federal Constitutional Court (2009) held computer voting unconstitutional absent verifiable public scrutiny; paper ballots restored	Political Parties Act mandates internal democratic structures, congresses, and audited accounts as a condition of legal recognition
Brazil	Superior Electoral Court (Tribunal Superior Eleitoral), a judicial body with electoral administration functions	Corporate donations banned since 2015; public campaign fund	Fully electronic voting nationwide since 1996, without a voter-verified paper trail, a point of recurring domestic debate	Party primaries less institutionalised than in the United States; strong party-list proportional representation shapes candidate selection

Country	Election Management	Political Funding	Electronic Voting	Party Democracy
South Korea	National Election Commission, a constitutionally independent body	Public subsidy tied to vote share; strict private donation limits	Paper ballots with electronic counting assistance	Party primaries increasingly used for candidate selection, particularly for presidential nominations

India's model, an independent constitutional Election Commission under Article 324, phased introduction of EVMs with VVPAT, and a still-developing statutory framework for party internal democracy, sits between the fully judicialised Brazilian model and the more decentralised, State-based American model, while its post-Electoral-Bonds campaign finance landscape remains, as of 2026, without a settled replacement framework for anonymous small-and-medium donations.



Case Studies

Electoral Bonds (2018 to 2024)

Introduced through the Finance Act, 2017 as an interest-free bearer instrument sold by the State Bank of India, the scheme permitted donors to purchase bonds anonymously vis-a-vis the public (though not vis-a-vis the State Bank of India's own transaction records) and donate them to any registered political party. Over roughly six years, bonds worth thousands of crores of rupees were purchased and redeemed, with data disclosed pursuant to the Supreme Court's 2024 judgment showing a concentration of donations among a relatively small set of corporate donors and parties. The scheme's invalidation has left an unresolved policy gap on how India should structure transparent, feasible political funding going forward, a live question for this committee.

Special Intensive Revision Implementation (2025 to 2026)

The Bihar SIR, conducted ahead of the 2025 Assembly election, became the template and the primary site of controversy for the subsequent nationwide exercise, generating litigation on documentation requirements, exclusion of long-term residents lacking specified documents, and the compressed timeline for claims and objections, culminating in the Supreme Court's May 2026 judgment upholding the Commission's authority while directing continued attention to safeguards, and subsequent hearings on appellate tribunal capacity in West Bengal.

EVM-VVPAT Controversies Across Election Cycles

Disputes over EVM reliability have recurred after multiple general and State elections since the early 2010s, generally alleging either technical manipulation or administrative irregularity in specific constituencies; none has resulted in a judicial finding of established tampering, and the Supreme Court has treated the 2024 VVPAT judgment as settling the core legal question, dismissing subsequent petitions raising the same demand for full cross-verification.

Recent General and State Elections

The 2024 General Election to the Lok Sabha, and subsequent State Assembly elections including in West Bengal, Assam, Tamil Nadu, Kerala, and Puducherry scheduled for 2026, provide the immediate empirical backdrop against which SIR implementation, campaign finance conduct, and paid news monitoring should be assessed by delegates.

Bloc Positions

The following are illustrative, neutral summaries of plausible negotiating positions for use in committee, and do not represent the endorsed view of any named party or the Moderator.

Ruling Alliance (illustrative)

- Likely to defend the Special Intensive Revision and the pace of its rollout as necessary administrative correction of a genuinely outdated roll.
- Likely to support the One Nation, One Election framework as a cost and governance efficiency measure.
- May be cautious about statutory caps on party expenditure or mandatory internal-election enforcement mechanisms perceived as intrusive.

Major Opposition Parties (illustrative)

- Likely to press for expanded documentation flexibility and extended timelines within SIR, and for strengthened, independent appellate mechanisms for excluded electors.
- Likely to renew calls for a transparent replacement for the invalidated Electoral Bonds framework, including donation caps and full disclosure.
- Likely to be more receptive to statutory internal-party-democracy requirements, subject to reciprocal application across all parties.

Regional Parties (illustrative)

- Likely to raise federalism concerns regarding simultaneous elections and their effect on State-level electoral cycles and issues.
- Likely to have heightened sensitivity to SIR implementation in States with significant migrant or linguistic-minority populations.

Election Commission Representatives (illustrative, non-partisan)

- Likely to emphasise administrative feasibility, existing statutory authority, and the safeguards already embedded in current processes.
- Likely to resist proposals perceived as compromising institutional independence or imposing unfunded administrative mandates.

Civil Society and Election Reform Advocates (illustrative)

- Likely to press for enhanced transparency across campaign finance, paid news enforcement, and roll-revision safeguards, often anchored in Right to Information and equality-of-franchise arguments.



Questions a Resolution Must Answer

- How can transparency in political and campaign finance be increased in the absence of the Electoral Bonds Scheme, and what disclosure or contribution-limit framework should replace it?
- Should political parties, and not merely individual candidates, be subject to a statutory expenditure ceiling?
- Should VVPAT verification be expanded beyond the current sampling protocol, and if so, on what technical and administrative basis, consistent with the Supreme Court's 2024 findings?
- Should paid news attract stricter, statutorily defined penalties, including a clear definition of the offence within the Representation of the People Act, 1951?
- Should political parties be legally required to maintain verifiable internal democracy, including periodic internal elections and audited, public accounts, and what should be the consequence of non-compliance?
- How should electoral rolls be kept accurate through exercises such as the Special Intensive Revision, while ensuring adequate safeguards, documentation flexibility, and appellate capacity so that no eligible voter is wrongfully excluded?
- What role, if any, should statutory regulation play in governing AI-generated political content and digital campaign advertising?



Policy Options

- Election finance reforms: introduction of a transparent replacement funding mechanism, an expenditure ceiling for parties, and a cap on permissible cash donations.
- Digital transparency measures: mandatory disclosure labelling for sponsored political content and influencer partnerships during the campaign period.
- AI and synthetic media regulation: a defined disclosure obligation for AI-generated or AI-altered political campaign material, potentially through amendment to the Model Code of Conduct or dedicated Election Commission guidelines with statutory backing.
- Paid news regulation: statutory definition of paid news within the Representation of the People Act, 1951, and clearer, faster adjudication timelines before Returning Officers and Election Commission benches.
- Party democracy legislation: amendment to Section 29A registration conditions to make internal elections and public account disclosure enforceable, with graded consequences short of deregistration for first instances of non-compliance.
- Independent oversight: consideration of an independent, statutorily empowered body or expanded Election Commission wing dedicated to campaign finance and paid news enforcement.
- Technology safeguards: continued and, where feasible, incrementally expanded VVPAT sampling, subject to logistical feasibility assessed by the Election Commission.
- Electoral roll reforms: standardised, nationally consistent documentation requirements for SIR-type exercises, strengthened appellate tribunal capacity, and defined minimum notice and hearing periods for proposed exclusions.



Conclusion

The health of India's constitutional democracy rests, in the final analysis, on the credibility of the process by which its citizens choose their representatives. Free and fair elections, this committee's members should remember, are not merely a procedural guarantee; the Supreme Court has held them to be part of the basic structure of the Constitution, incapable of dilution even by constitutional amendment. Every reform this committee considers, whether it concerns the transparency of political finance, the verifiability of the electronic vote, the integrity of political reporting, the internal democratic character of political parties, or the accuracy and inclusiveness of the electoral roll, ultimately serves a single constitutional value: the sanctity of the citizen's franchise.

Institutional trust in the Election Commission, the judiciary, and the political parties themselves is not self-sustaining; it must be renewed by demonstrated fidelity to due process, inclusive participation, and evidence-based reform. Delegates are urged to negotiate in that spirit, seeking not partisan advantage but durable, implementable consensus that strengthens electoral integrity in the abiding national interest.

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End of Background Guide • All India Political Parties Meet